

Court No. - 39

Case :- WRIT - C No. - 1109 of 2019

Petitioner :- Preetmesh Pal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ramesh Kumar Ojha, Alok Kumar Singh

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Shri Alok Kumar Singh, learned counsel for the petitioner, learned standing counsel for the respondents no. 1, 2 and 3 and Shri Mahboob Ahmad, learned counsel for the respondent no. 4.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 13.11.2018 as well as the order dated 28.12.2018 whereby a recovery of Rs.13,13,546/- plus Rs.65,677/- is sought to be recovered from the petitioner towards electricity dues. In paragraph 8 of the writ petition it is stated that the petitioner is ready and willing to deposit the said dues in easy installment with a further prayer that the respondents be directed to make final assessment.

In our opinion remedy is available to the petitioner by approaching the respondent no. 4-Executive Engineer, Electricity Urban Distribution Division, Bamhrauli Purvanchal Vidyut Vitran Nigam Ltd. Allahabad under clause 6.5 of the U.P. Electricity Supply Code, 2005.

We therefore **dispose of** this writ petition with a direction that if the petitioner appears before the respondent no. 4 - Executive Engineer, Electricity Urban Distribution Division, Bamhrauli Purvanchal Vidyut Vitran Nigam Ltd. Allahabad on 31.1.2019 at 11 a.m. alongwith the certified copy of this order as well as representation, the respondent no. 4 shall give the petitioner an opportunity of hearing and consider and decide the said representation in accordance with law within a further period of 15 days.

Subject to the petitioner complying with the direction given herein above, the recovery in pursuance of the impugned recovery citation dated 13.11.2018 as well as the order dated 28.12.2018 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no. 4.

Order Date :- 17.1.2019

o.k.